

Defendants contend “there is no factual dispute that defendants did separately pay at least minimum wage for all hours worked, including rest breaks & non-productive time.” Defendants rely on a recent appellate decision, from the Second Appellate District: *Mora v. C.E. Enterprises, Inc.* (2025) 340 Cal.Rptr.3d 368.

Plaintiff responds that the decision in *Mora* does not control here. In support of their supplemental briefing, they request judicial notice of the trial court’s opinion that was reviewed and affirmed in *Mora*. There, the trial court specifically noted in its Statement of Decision that, despite judgment in favor of defendants, “[n]othing in this decision [...] is intended to be a finding on whether or not the [defendant] payplan is structurally illegal, or otherwise violative of the Labor Code provisions regarding the payment of legally required wages.” (Request for Judicial Notice, Ex. B, 4:10-12.) The appellate court proceeded to review the trial court’s judgment with substantial commentary about the standard of review and whether appellant plaintiffs had sufficiently met their evidentiary burden in the trial court.

Accordingly, even if parties were able to show identical issues in this case as in *Mora*, that opinion does not control based on comments by both the trial court and the appellate court. (See, e.g., *Mora, supra*, 116 Cal.App.5th at 87 [declining to consider new arguments made in reply brief, noting on appeal, the trial court is presumed to have ruled correctly, and noting “appellants have failed to provide an adequate record for us to review their contentions regarding their PAGA claim”].) Further, there are several disputes of fact that appear to be material to these issues. (See SSUMF, Fact Nos. 11-17, and plaintiff’s response.)

At a minimum, plaintiff submits evidence (to which defendants do not object) that “Defendants’ compensation system for workers is based on the number of ‘pieces’ of work completed, and as such should be viewed as a piece-rate system of pay. Compensation is never determined by the ‘base hourly rate’ multiplied by ‘straight-time hours’ plus some ‘productivity bonus,’ as would be the case in a payroll system based on an hourly wage and the number of clocked hours worked.” (Declaration of David Fairris, ¶4.) This is sufficient to create a triable dispute of fact.

Defendants’ request for summary adjudication on issues 8 and 9 is denied.

**17. 9:00 AM CASE NUMBER: MSC21-02493**

**CASE NAME: KUAR VS. MAHARAJ**

**HEARING ON SUMMARY MOTION**

**FILED BY:**

**\*TENTATIVE RULING:\***

**Denied as moot** based on cross-complainants' July 2, 2026 voluntary dismissal without prejudice of cross-complaint against the moving party/cross-defendant Suman Behari.

**18. 9:00 AM CASE NUMBER: N23-2314**

**CASE NAME: STEVEN SMITH VS. AURIN CANSON**

**\*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: DAVID HERMELIN**

**FILED BY: CANSON, AURIN M.K.**

**\*TENTATIVE RULING:\***

David Hermelin's Motion to Be Relieved as Counsel for Defendant Aurin Canson will be **granted** as soon as counsel complies with California Rule of Court 3.1362(e) and lodges a proposed order with the Court.

**19. 9:00 AM CASE NUMBER: N26-0541**  
**CASE NAME: CARMEN SAMIERE VS. MATEO MAYNE**  
**HEARING IN RE: PETITION TO CORRECT OR VACATE ARBITRATION AWARD**  
**FILED BY: SAMIERE, CARMEN MARIE**  
**\*TENTATIVE RULING:\***

Petitioner Carmen Samiere seeks to correct the arbitration award she received against Respondent Mateo Mayne. The Court previously approved alternate service on Mayne, and so it is perhaps no surprise that Mayne has not responded to the Petition.

Pursuant to Code of Civil Procedure Section 1286.6:

Subject to Section 1286.8, the court, unless it vacates the award pursuant to Section 1286.2, shall correct the award and confirm it as corrected if the court determines that:

- (a) There was an evident miscalculation of figures or an evident mistake in the description of any person, thing or property referred to in the award;
- (b) The arbitrators exceeded their powers but the award may be corrected without affecting the merits of the decision upon the controversy submitted; or
- (c) The award is imperfect in a matter of form, not affecting the merits of the controversy.

This Court must give every intendment of validity to arbitration award, and burden is on one claiming error to support his claim. (*Griffith Co. v. San Diego College for Women* (1955), 45 Cal. 2d 501, 516.) "The mere fact that an arbitrator used unsound reasoning in reaching a conclusion or reached an erroneous conclusion within the scope of arbitration will not invalidate the result." (*Durand v. Wilshire Ins. Co.* (1969) 270 Cal. App. 2d 58, 63.)

Here, Samiere argues that the arbitrator ignored certain of her evidence in denying some of her requested damages. She further argues that the arbitrator did not give any reasoning in denying her Request for Modification. Upon review of the Petition, Samiere is essentially asking for this Court to re-weigh evidence that was fully litigated before the arbitrator, including *with* the involvement of Mayne. The Court does not reach the "intrinsic validity" of the award, but looks only to "whether the arbitrator exceeded his or her powers." (*Rifkind & Sterling, Inc. v. Rifkind* (1994) 28 Cal. App. 4th 1282, 1290.) What Samiere is seeking would affect the merits, which is not permitted. (*See, e.g., E-Commerce Lighting, Inc. v. E-Commerce Trade LLC* (2022) 86 Cal. App. 5th 58.)

The Petition is therefore **denied**.